

Seismic Connect

Terms and Agreement

Clinical Data Intelligence Platform Powered by Ambient AI

SEISMIC CONNECT INC

19465 Deerfield Ave, Suite 410, Lansdowne, VA 20176

Delaware Corporation

What is Seismic Connect and How Does It Benefit?

Seismic Connect is a clinical data intelligence platform that helps practices deliver care more effectively. It is offered free standing or EHR integrated.

Important Principles (Both Tiers)

- All clinical decisions remain solely with the licensed provider.
- Seismic Connect AI is informational and assistive — never diagnostic or directive.
- AI-generated content remains a draft until the provider reviews, edits, and approves it.
- Patient data is encrypted in transit and at rest.
- Obtaining consent for AI use is solely the responsibility of user

Seismic Connect Master Services Agreement

1. License and Services

Subject to the terms and provisions herein, Seismic Connect hereby grants to Customer a nontransferable, non-exclusive subscription license ("License") to access and use the Seismic Connect platform ("Platform") during the Term of this Agreement. The Platform is offered in two subscription tiers as described below;

a. Freestanding Tier: Provides standalone access to Seismic Connect's ambient AI clinical documentation capability. Audio of the clinical encounter is captured and processed within the Seismic Connect application; AI-generated SOAP-format note drafts are delivered to the provider within the Seismic Connect interface for review, edit, and approval. The Freestanding tier does *not* include integration with Customer's electronic health record, practice management, or other clinical systems. The provider is responsible for transferring (e.g., copying) the approved note into the appropriate clinical system of record.

b. Integrated Tier: Provides full Platform access, including ambient AI clinical documentation with write-back to Customer's electronic health record;

2. Term

The term of this Agreement begins on the Effective Date and continues on a month-to-month basis following the initial subscription, until terminated by either party in accordance with the terms herein. Either party may terminate the Agreement by providing thirty (30) days' written notice. Seismic Connect may also terminate the Agreement immediately upon Customer's material breach (subject to cure rights)

3. Deliverables

a. Seismic Connect Platform: Access to the Platform consistent with Customer's subscribed tier and modules

b. Implementation: For the Freestanding tier, implementation consists of user account provisioning, application setup, and provider onboarding, and may typically be completed in days. For the Integrated tier, implementation additionally includes system integration setup, configuration of subscribed modules, initial data onboarding, and integration testing, and is typically completed in weeks. Some assistance may be required from Customer's IT, clinical, and administrative staff during implementation.

c. Training: Seismic Connect will provide remote training to providers, clinical staff, and administrative users at no additional charge during onboarding. Refresher training and role-based training are available upon request.

d. Updates, Upgrades and Bug Fixes: Will be provided at no additional charge during the term, including new features and modules released as part of Customer's subscribed tier.

e. Support: Seismic Connect will provide email and ticketed support, with escalation paths for urgent issues affecting clinical operations. Premium and dedicated support tiers may be available as add-ons.

f. Tier Upgrade: Customer may upgrade from the Freestanding tier to the Integrated tier at any time by executing a new Order Form referencing this Agreement, without the need to re-execute this Agreement.

4. Access and Integration

Where Customer subscribes to the Integrated tier, Customer will provide Seismic Connect with reasonable access to its electronic health record, practice management, and other clinical or administrative systems via authorized integration channels (such as API connections, secure data feeds, or partner marketplaces), as needed for Seismic Connect to fulfill its obligations under this Agreement. Customer is responsible for maintaining its system vendor authorizations enabling Seismic Connect's access.

The Freestanding tier does not require, and Seismic Connect will not request, access to Customer's electronic health record, practice management, or other clinical systems.

5. Patient Consent and Notification

Both subscription tiers involve ambient capture of clinical encounter audio. Customer is solely responsible for providing patient awareness and obtaining any required consent in accordance with applicable law, including any wiretap, two-party consent, recording, biometric, or patient rights statutes in each jurisdiction in which Customer operates. Seismic Connect may provide patient-facing notification language and signage templates as a courtesy; Customer is responsible for verifying their adequacy under the law of each applicable jurisdiction.

6. Clinical Responsibility (Key Principle)

Customer acknowledges and agrees that:

- Seismic Connect's AI and analytics generate informational outputs and assistive insights only, and do not constitute clinical advice, diagnosis, treatment recommendations, or any form of medical decision-making.
- All clinical judgments, diagnoses, treatment decisions, prescriptions, orders, coding determinations, and patient care decisions remain solely the responsibility of licensed healthcare professionals.
- Provider and clinician review, edit, and approval of AI-generated content (including documentation drafts, suggested codes, identified care gaps, and risk indicators, as

applicable to Customer's subscribed tier) is required before such content is used for clinical, billing, or regulatory purposes.

- For the Freestanding tier, Customer acknowledges that the provider is solely responsible for accurately transferring approved notes into the EHR or clinical system of record.
- Customer is solely responsible for the accuracy and completeness of finalized documentation, codes, claims, and clinical decisions made on the basis of Platform outputs.

7. Standard Terms & Conditions

Customer agrees to Seismic Connect's Standard Terms & Conditions set forth in Exhibit A and incorporated herein by reference.

8. Privacy and Regulatory Compliance

Seismic Connect requires access to patient and practice data in order to provide the Platform and services described in this Agreement. The Parties agree to comply with all applicable privacy, security, and healthcare data regulations in the jurisdictions in which Customer operates.

Where Customer is a U.S. healthcare provider or otherwise a Covered Entity under the U.S. Health Insurance Portability and Accountability Act (HIPAA), the Parties shall execute and comply with the Business Associate Agreement set forth in Exhibit B and incorporated herein by reference. The BAA applies to both subscription tiers, with provisions specific to system integration applying only where Customer is on the Integrated tier.

Where Customer operates outside the United States, or where additional jurisdictional requirements apply (including but not limited to the EU General Data Protection Regulation, UK GDPR, Canada PIPEDA, Australia Privacy Act, or other regional healthcare and privacy frameworks), the Parties shall execute such additional data processing or protection agreements as are required, which shall be attached as supplementary exhibits and incorporated by reference.

EXHIBIT A

Standard Terms & Conditions

The following Standard Terms and Conditions are part of the Seismic Connect Master Services Agreement to which this Exhibit A is attached. Capitalized terms not otherwise defined herein have the meanings set forth in the Agreement. By signing the Agreement, the Customer also agrees to these terms.

1. Proprietary Rights

Customer agrees that Seismic Connect owns the Platform and all related information and intellectual property rights, including updates, improvements, modifications, copyrights, trademarks, patents, AI models, training data, algorithms, analytical methodologies, and all derivative works (collectively, the "Seismic Connect Technology"), whether in written or unwritten form and regardless of whether developed solely by Seismic Connect or with input from Customer. Seismic Connect shall retain the exclusive right to publish, license, distribute, or otherwise make use of the Seismic Connect Technology.

2. Customer Data

As between the Parties, Customer retains all right, title, and interest in and to its patient data, practice data, and other inputs provided to or processed by the Platform (collectively, "Customer Data"). Customer grants Seismic Connect a limited, non-exclusive license to access, process, and use Customer Data solely as necessary to provide the Platform and services to Customer. Seismic Connect may use de-identified or aggregated data derived from Customer Data to operate, improve, and develop the Platform, in accordance with applicable law and the privacy and data protection terms of this Agreement.

3. Obligations Upon Termination

Upon termination of this Agreement, Seismic Connect shall have the right to disable Customer's access to the Platform. Customer shall cease all use of the Platform and delete any cached or downloaded copies of Seismic Connect proprietary materials. Customer shall remain obligated for any payments due through the effective date of termination. Seismic Connect shall, upon Customer's written request, return or destroy Customer Data in accordance with the privacy and data protection terms of this Agreement and applicable law. Termination shall be in addition to and not in lieu of any other remedies available to Seismic Connect.

4. Warranties and Disclaimers

a. Limited Warranty: Seismic Connect warrants that (i) it has the right to license the Platform and that there are no known infringements or claims of infringement with respect to the Platform; and (ii) the Platform shall conform substantially to its published specifications and shall be free from material defects when used in accordance with this Agreement.

b. AI-ASSISTIVE NATURE: CUSTOMER ACKNOWLEDGES AND AGREES THAT THE PLATFORM PROVIDES AI-ASSISTIVE INFORMATIONAL AND ANALYTICAL OUTPUTS AND IS NOT A DIAGNOSTIC, DECISION-MAKING, OR TREATMENT TOOL. AI- AND ANALYTICS-GENERATED CONTENT — INCLUDING DOCUMENTATION DRAFTS, SUGGESTED CODES, IDENTIFIED CARE GAPS, RISK INDICATORS, AND POPULATION INSIGHTS — IS A DRAFT FOR LICENSED CLINICIAN AND AUTHORIZED USER REVIEW. THE LICENSED PROVIDER OR AUTHORIZED USER IS SOLELY RESPONSIBLE FOR REVIEWING, EDITING, AND APPROVING ALL CONTENT BEFORE IT IS USED FOR CLINICAL, BILLING, OR REGULATORY PURPOSES. SEISMIC CONNECT IS NOT A SUBSTITUTE FOR LICENSED CLINICAL JUDGMENT.

c. DISCLAIMER: CUSTOMER ACKNOWLEDGES AND AGREES THAT THE WARRANTIES IN SECTION 4.a SUPERSEDE ALL OTHER REPRESENTATIONS AND WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE AND ANY OTHER STATUTORY OR COMMON-LAW WARRANTY. LIABILITY OF SEISMIC CONNECT FOR ANY CLAIM RELATING TO THIS AGREEMENT SHALL BE LIMITED TO THE TOTAL AMOUNT OF FEES PAID BY CUSTOMER TO SEISMIC CONNECT WITHIN THE PRIOR SIX (6) MONTHS. IN NO EVENT SHALL SEISMIC CONNECT BE LIABLE FOR INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR INDIRECT DAMAGES, INCLUDING LOSS OF BUSINESS OR PROFITS.

d. CLINICAL AND OPERATIONAL RESPONSIBILITY: CUSTOMER ACKNOWLEDGES THAT THE PLATFORM IS AN INFORMATIONAL, ASSISTIVE, AND ADMINISTRATIVE TOOL ONLY. SEISMIC CONNECT SPECIFICALLY DISCLAIMS ANY LIABILITY ARISING FROM CLINICAL DECISIONS, DIAGNOSES, TREATMENT, CODING, OR BILLING DETERMINATIONS MADE ON THE BASIS OF PLATFORM OUTPUTS. CUSTOMER IS SOLELY RESPONSIBLE FOR (1) ENSURING ALL DOCUMENTATION, CODES, AND CLAIMS ARE ACCURATE AND COMPLETE BEFORE BEING FINALIZED; (2) FOR THE FREESTANDING TIER, ENSURING THAT NOTES ARE ACCURATELY TRANSFERRED INTO THE EHR OR CLINICAL SYSTEM OF RECORD; (3) ENSURING ITS PATIENTS RECEIVE PROPER MEDICAL ATTENTION; AND (4) OBTAINING ANY PATIENT CONSENT REQUIRED UNDER APPLICABLE LAW. CUSTOMER AGREES TO INDEMNIFY AND HOLD SEISMIC CONNECT HARMLESS FROM ANY CLAIM RELATED TO THE PROVISION OF, OR FAILURE TO PROVIDE, MEDICAL SERVICES OR ACCURATE BILLING BY CUSTOMER OR ITS AFFILIATES.

5. Maintenance of Title and Use Restrictions

Customer shall keep the Platform free and clear of any claims, liens, or encumbrances. Customer shall not: (a) copy, duplicate, or permit anyone else to copy the Platform; (b) make the Platform available to any person or entity other than employees, contractors, or agents of Customer with a need to know consistent with Customer's use; (c) reverse engineer, disassemble, or attempt to derive source code or model weights from the Platform; or (d) use the Platform to develop or train any competing AI model or service.

6. Confidentiality and Use

Each party acknowledges that, during and after the Term, it may receive Confidential Information from the other party, including business plans, product roadmaps, technical architectures, AI models and algorithms, pricing, contracts, and strategic information. Each party agrees not to use or disclose to any third party any Confidential Information of the other party except as required by law or as necessary to perform this Agreement. The License is for the sole use of Customer and is not transferable. Confidentiality obligations survive termination.

7. Unauthorized Use

Customer agrees to immediately notify Seismic Connect if it becomes aware of any unauthorized possession, use, or disclosure of the Platform by any person or entity, and further agrees to cooperate with Seismic Connect, at Seismic Connect's expense, in protecting Seismic Connect's proprietary rights.

8. Ownership of Improvements

Seismic Connect is the sole owner of all inventions, discoveries, updates, improvements, modifications, AI model enhancements, analytical methodologies, and feature developments relating to the Platform, whether developed solely by Seismic Connect or with Customer's input. Seismic Connect shall retain the exclusive right to reproduce, publish, patent, copyright, license, or otherwise make use of such enhancements.

9. Service Availability

Seismic Connect will use commercially reasonable efforts to maintain Platform availability measured monthly, excluding scheduled maintenance windows and events outside Seismic Connect's reasonable control. Seismic Connect shall provide reasonable advance notice of scheduled maintenance. In the event of an unscheduled outage materially affecting clinical operations, Seismic Connect shall use commercially reasonable efforts to restore service as promptly as possible and shall communicate status updates to Customer.

10. Expenses

Except as otherwise agreed, all expenses incurred by each Party in performing its obligations shall be borne by the Party incurring the expense.

11. Independent Contractor

Seismic Connect and Customer are independent contractors. Neither party shall act as the agent or partner of the other, nor shall either party have authority to make decisions or incur obligations on behalf of the other.

12. Integration and Assignment

This Agreement, along with all referenced documents and Exhibits, represents the full and final agreement between the Parties and supersedes any prior agreements, express or implied. This Agreement shall not be assigned or transferred by Customer without the prior written consent of Seismic Connect, except that Customer may assign upon merger, acquisition, or sale of substantially all of its assets, with notice to Seismic Connect.

13. Notice

All notices required under this Agreement shall be in writing and delivered (a) personally, (b) by overnight courier, or (c) by email with confirmation of receipt. Notices to Seismic Connect shall be sent to: Seismic Connect Inc., Attn: Legal, 19465 Deerfield Ave, # 410, Lansdowne, VA 20176 , with email copy to legal@Seismic Connect.com (or such other address Seismic Connect designates in writing). Notices to Customer shall be sent to the address on the cover page.

14. Amendments, New Features, and Fee Adjustments

Seismic Connect may amend this Agreement, including the Standard Terms & Conditions and any privacy or data protection exhibits, by providing at least thirty (30) days' advance written notice to Customer. If Customer does not agree to the amendment, Customer may terminate the Agreement by providing written notice before the changes take effect. Once the revised terms are in effect, continued use of the Platform constitutes acceptance. Seismic Connect may also introduce new features, modules, and integrations, which may be subject to additional fees with thirty (30) days' notice.

15. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the validity, legality, and enforceability of the remaining provisions shall not be affected.

16. Waiver

Seismic Connect's delay or failure to exercise any right, privilege, or option under this Agreement shall not waive any of these rights, privileges, or options.

17. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Virginia, without regard to its conflict-of-laws principles, except to the extent preempted or supplemented by applicable federal or international law. Any

disputes arising under or relating to this Agreement shall first be addressed through good-faith negotiation, and if unresolved, through mediation, before any litigation. For Customers based outside the United States, the Parties may agree on a mutually acceptable governing law and dispute resolution forum in a separate addendum, in which case such addendum shall control to the extent of any conflict with this Section.

18. Headings and Counterparts

Headings are for convenience only and do not interpret or limit the scope of any provision. This Agreement may be executed in separate parts or via electronic means (including DocuSign), and each electronic copy shall be considered as valid as an original.

19. Miscellaneous

Customer agrees that Seismic Connect shall be entitled to seek injunctive relief in the event Customer materially breaches this Agreement, in addition to other remedies. The prevailing party in any action to enforce this Agreement (including action to collect overdue fees) shall be entitled to recover reasonable attorneys' fees and court costs.

EXHIBIT B

Business Associate Agreement

(Applicable to U.S. Customers Subject to HIPAA — Both Subscription Tiers)

The following Business Associate Agreement (the "BAA") is part of the Seismic Connect Master Services Agreement to which this Exhibit B is attached, and applies where Customer is a Covered Entity under the U.S. Health Insurance Portability and Accountability Act of 1996, as amended ("HIPAA"). This BAA applies to both the Freestanding and Integrated subscription tiers; provisions specific to system integration apply only where Customer subscribes to the Integrated tier, as expressly noted. For Customers that are not subject to HIPAA, this Exhibit B does not apply, and a separate jurisdiction-appropriate data protection agreement may be executed as an addendum. Capitalized terms not otherwise defined herein have the meanings set forth in the Agreement or in HIPAA. By signing the Agreement, both Parties also agree to the terms set forth in this BAA where applicable.

Pursuant to the Agreement, Seismic Connect, its employees, subcontractors, agents, and affiliates (individually and collectively, the "Business Associate") perform functions or activities on behalf of Customer involving the use and/or disclosure of PHI. Customer is a covered entity under HIPAA and its implementing regulations.

1. Definitions

For purposes of this BAA, capitalized terms not otherwise defined have the meanings given in HIPAA. Without limitation, the following terms apply:

- "Administrative Safeguards" — administrative actions, policies, and procedures to manage security measures protecting Electronic PHI.
- "Breach" — has the same meaning as in 45 C.F.R. § 164.402.
- "Business Associate" — Seismic Connect Inc., a Delaware corporation operating the Seismic Connect Platform, including its clinical data intelligence, ambient AI, analytics, and integration capabilities.
- "Covered Entity" — Customer.
- "Designated Record Set" — has the same meaning as in 45 C.F.R. § 164.501(a).
- "Electronic PHI" or "ePHI" — PHI created, received, maintained, or transmitted in electronic form, as defined in 45 C.F.R. § 160.103.
- "HIPAA Rules" — the Privacy, Security, Breach Notification, and Enforcement Rules at 45 C.F.R. Parts 160 and 164.
- "HITECH" — the Health Information Technology for Economic and Clinical Health Act and its implementing regulations.

- "Part 2 Patient" / "Part 2 Program" / "Part 2 Program Records" — have the meanings given in 42 C.F.R. Part 2.
- "Physical Safeguards" — physical measures, policies, and procedures protecting electronic information systems from natural and environmental hazards and unauthorized intrusion.
- "PHI" — Protected Health Information as defined in 45 C.F.R. § 160.103, limited to information created or received by Business Associate from or on behalf of Covered Entity.
- "Required by Law" — has the meaning in 45 C.F.R. § 164.103.
- "Secretary" — the Secretary of HHS or any designee.
- "Security Incident" — has the meaning in 45 C.F.R. § 164.304.
- "Technical Safeguards" — technology and policies that protect ePHI and control access to it.
- "Transaction Standards" — Standards for Electronic Transactions at 45 C.F.R. Parts 160 and 162.
- "Unsecured PHI" — PHI not rendered unusable, unreadable, or indecipherable through methodology specified by the Secretary under HITECH § 13402(h)(2).

2. Compliance with Applicable Law

As of the Effective Date, Business Associate shall comply with all obligations of a business associate under HIPAA, HITECH, and any other related laws and implementing regulations, as they exist at execution and as amended. If Covered Entity is or becomes a Part 2 Program, Business Associate shall additionally comply with applicable regulations at 42 C.F.R. Part 2.

3. Permitted Uses and Disclosures of PHI

Business Associate shall not use or disclose PHI received from Covered Entity in any manner not permitted or required by this BAA or by law. All uses and disclosures of and requests for PHI are subject to the minimum necessary standard and shall be limited to a limited data set where practical, unless additional information is needed to accomplish the intended purpose.

Business Associate may use or disclose PHI only:

- As necessary to perform services under the Agreement, including (consistent with Customer's subscribed tier) ambient AI documentation, clinical data intelligence and analytics, quality measure tracking, risk stratification, care management, population health reporting, and integration with Customer's clinical systems on behalf of Covered Entity;
- As Required by Law;

- For proper management and administration of Business Associate or to carry out its legal responsibilities, provided disclosures are Required by Law or that Business Associate obtains reasonable confidentiality assurances from any recipient;
- To provide data aggregation services relating to Covered Entity's healthcare operations under 45 C.F.R. § 164.504(e)(2)(i)(B);
- To de-identify PHI per 45 C.F.R. § 164.514(a)–(c), and to use such de-identified information for any lawful purpose;
- As expressly authorized in writing by Covered Entity.

Business Associate shall not: (a) sell PHI without a valid HIPAA-compliant individual authorization; (b) use PHI for marketing communications without a valid authorization under 45 C.F.R. § 164.501; or (c) use PHI for any secondary purpose beyond the scope of this BAA or the Agreement.

4. Required Safeguards

Business Associate shall implement and maintain all necessary Administrative, Physical, and Technical Safeguards in accordance with the Privacy, Security, and Transaction Standards (including Subpart C of 45 C.F.R. Part 164) to prevent any use or disclosure of PHI other than as permitted by this BAA. If Business Associate conducts any Standard Transactions on behalf of Covered Entity, it shall comply with 45 C.F.R. Part 162.

5. Breach Notification and Reporting

5.1 Breach of Unsecured PHI

In the event of an impermissible acquisition, access, use, or disclosure of Unsecured PHI created or maintained by Business Associate, Business Associate shall determine whether a Breach has occurred. If Business Associate determines a Breach has occurred, it shall notify Covered Entity in accordance with HITECH § 13402 and 45 C.F.R. § 164.410, without unreasonable delay and in no case later than fifteen (15) calendar days after discovery. Discovery shall be deemed to have occurred on the first day the Breach is known to, or by exercising reasonable diligence would have been known to, Business Associate. Notice shall include:

- Identity of each individual whose PHI was or is reasonably believed to have been breached;
- Description of the Breach, including the date and date of discovery;
- Types of PHI involved;
- Steps individuals should take to protect themselves;
- Steps Business Associate is taking to investigate, mitigate, and prevent recurrence;
- Contact information for questions.

5.2 Security Incidents

Business Associate shall report Security Incidents of which it becomes aware without unreasonable delay. For unsuccessful Security Incidents (e.g., pings, port scans, login attempts not resulting in unauthorized access), Business Associate may provide periodic summary reports.

5.3 Impermissible Uses or Disclosures

Business Associate shall report to Covered Entity any use or disclosure of PHI not permitted by this BAA of which it becomes aware, without unreasonable delay.

6. Part 2 Programs (Substance Use Disorder)

Only if, and solely to the extent that, Covered Entity is a Part 2 Program, the following provisions apply: Business Associate acknowledges that it is a "qualified service organization" under the Public Health Act by virtue of the Agreement, and that in receiving, storing, processing, or otherwise dealing with any Part 2 Program Records from Covered Entity, it is fully bound by 42 C.F.R. Part 2. Business Associate will, if necessary, resist in judicial proceedings any efforts to obtain access to Part 2 Program Records except as permitted by such regulations.

7. Subcontractors and Agents

Business Associate shall enter into a written agreement with any agent or subcontractor that will have access to PHI received from, or created or received by, Business Associate on behalf of Covered Entity. Pursuant to such agreement, the agent or subcontractor shall be bound by the same restrictions and conditions that apply to Business Associate under this BAA. Business Associate is responsible for ensuring its subcontractors comply with such obligations.

8. Individual Rights

8.1 Access to PHI

Within ten (10) calendar days of a request by Covered Entity for access to PHI about an individual in a Designated Record Set, Business Associate shall make such PHI available to Covered Entity, as required by 45 C.F.R. § 164.524. If an individual delivers directly to Business Associate a request for access, Business Associate shall within ten (10) calendar days forward such request to Covered Entity.

8.2 Amendment of PHI

Within ten (10) calendar days of a request from Covered Entity for amendment of an individual's PHI in a Designated Record Set, Business Associate shall make such PHI available for amendment and incorporate any amendments as required by 45 C.F.R. § 164.526.

8.3 Accounting of Disclosures

Business Associate shall document all disclosures of PHI as needed to enable Covered Entity to respond to an accounting of disclosures request under 45 C.F.R. § 164.528 for the six (6) year period prior to the request. Business Associate shall provide such accounting to Covered Entity within ten (10) calendar days of a written request. For electronic health records, Business Associate shall comply with the enhanced accounting requirements under HITECH § 13405(c).

9. HHS Access and Cooperation

Business Associate shall make its internal practices, books, records, and policies relating to the use and disclosure of PHI available to the Secretary for purposes of determining Covered Entity's compliance with the HIPAA Rules. Business Associate shall also cooperate with and assist Covered Entity in any HHS investigation or compliance review relating to PHI processed under this BAA.

10. Mitigation

Business Associate shall mitigate, to the extent practicable, any harmful effect of a known unauthorized use or disclosure of PHI by Business Associate or its subcontractors or agents.

11. Seismic Connect Platform — Specific Provisions

11.1 Ambient Capture and Audio Processing (Both Tiers)

The Seismic Connect Platform processes audio recordings and/or transcripts of clinical encounters in both the Freestanding and Integrated tiers. Such recordings and transcripts constitute PHI and are subject to all provisions of this BAA. Business Associate shall not retain audio recordings longer than necessary to generate and deliver the resulting outputs (such as documentation drafts), unless a longer period is required by law or agreed in writing by Covered Entity. Business Associate shall maintain records of retention periods and make such records available upon request.

11.2 System Integration Security (Integrated Tier Only)

Where Customer subscribes to the Integrated tier, Business Associate's integration with Covered Entity's electronic health record, practice management, and other clinical systems involves transmission of ePHI between systems. All such transmissions shall be encrypted in transit and at rest using AES-256 or equivalent industry-standard encryption. Encryption shall align with applicable NIST cryptographic guidelines, including FIPS 140-3 validated algorithms where commercially reasonable. Business Associate shall maintain API security controls, authentication logs, and access audit logs for all integration activity. Such logs shall be made available to Covered Entity within ten (10) business days of written request. This Section 11.2 does not apply where Customer subscribes only to the Freestanding tier.

11.3 AI and Analytics Model Training — Strict Limits (Both Tiers)

Business Associate may use de-identified data derived from Covered Entity PHI (de-identified per 45 C.F.R. § 164.514) to improve its AI models, analytical methodologies, and clinical intelligence algorithms. Business Associate shall not use identifiable PHI from Covered Entity's patient population to train, fine-tune, or evaluate AI or analytical models without prior written authorization from Covered Entity. Business Associate shall implement reasonable technical and organizational measures to prevent re-identification, model memorization, and cross-client data contamination, consistent with industry best practices for clinical AI and analytics systems. Business Associate shall maintain a record of model training and analytical development activities involving Customer-derived data and make such records available upon written request.

11.4 Data Retention and Secure Deletion (Both Tiers)

Business Associate shall retain PHI only as long as necessary to perform services under the Agreement or as required by law. Business Associate shall maintain a documented data retention and deletion policy, made available upon request. Upon termination, Business Associate shall return or destroy all PHI per Article 12.

11.5 Role-Based Access Controls (Both Tiers)

Business Associate shall implement role-based access controls limiting PHI access to personnel with a demonstrated need to know. Access shall be governed by unique user identifiers. Business Associate shall maintain access logs and make such logs available within ten (10) business days of written request.

11.6 State Privacy Laws

Business Associate acknowledges applicable state privacy laws, including but not limited to the Virginia Consumer Data Protection Act (Va. Code § 59.1-571 et seq.), the California Consumer Privacy Act and California Privacy Rights Act, and similar state laws. To the extent any processing under this BAA is subject to such laws in addition to HIPAA, Business Associate agrees to cooperate with Covered Entity to ensure compliance, provided HIPAA shall govern and supersede such state laws in case of conflict to the extent permitted.

12. Term and Termination

12.1 Term

This BAA is effective as of the Effective Date and remains in force as long as Business Associate creates, receives, maintains, or transmits PHI on behalf of Covered Entity, unless earlier terminated.

12.2 Termination for Cause

Covered Entity may terminate the Agreement and this BAA if it determines Business Associate has violated a material term of this BAA. Covered Entity shall provide written notice of the violation. If Business Associate does not cure within thirty (30) days, Covered Entity may terminate immediately. If cure is not possible, Covered Entity may terminate

immediately and, if both cure and termination are infeasible, Covered Entity shall report the matter to the Secretary.

12.3 Mutual Termination

Either party may terminate this BAA upon termination of the Agreement, with thirty (30) days advance written notice.

12.4 Effect of Termination

Upon termination for any reason, Business Associate shall, within thirty (30) days:

- Retain only PHI necessary for proper management and administration or to carry out legal responsibilities;
- Return or securely destroy all remaining PHI;
- Extend the protections of this BAA to any PHI that cannot be returned or destroyed, limit further use and disclosure to those purposes that make return or destruction infeasible, and notify Covered Entity in writing of the reason;
- Not use or disclose retained PHI other than for the purposes for which it was retained;
- Return or destroy retained PHI when no longer needed;
- Certify in writing that all PHI has been returned or destroyed (or provide written explanation of infeasibility);
- Ensure all subcontractors and agents comply with these requirements.

The obligations of Business Associate under this Article shall survive termination.

13. Obligations of Covered Entity

Covered Entity shall: (a) provide its current Notice of Privacy Practices and notify Business Associate of any material changes; (b) notify Business Associate in writing of any changes in or revocations of individual permissions to use or disclose PHI to the extent affecting Business Associate's permitted uses; (c) notify Business Associate of any agreed restrictions under 45 C.F.R. § 164.522 affecting Business Associate's use or disclosure; (d) not request Business Associate to use or disclose PHI in any manner that would violate HIPAA if done by Covered Entity; (e) be solely responsible for obtaining any required patient consent or authorization, including consent for ambient audio capture; and (f) be responsible for the accuracy and completeness of PHI submitted to Business Associate, and (where on the Freestanding tier) for accurately transferring approved notes into the EHR or clinical system of record.

14. Indemnification

Each party shall defend, indemnify, and hold harmless the other party, its members, managers, officers, employees, and agents from and against any claims, penalties, fines, costs, and expenses (including reasonable attorneys' fees) arising from such party's negligence, willful misconduct, or material breach of this BAA or HIPAA. The indemnified

party shall promptly notify the indemnifying party of any claim, grant reasonable control over defense and settlement, and cooperate fully. No settlement imposing obligations or liability on the indemnified party shall be made without its prior written consent.

15. General Provisions

(a) This BAA shall automatically be amended to the extent necessary to comply with any amendment to HIPAA. (b) This BAA, together with the Agreement, constitutes the entire agreement between the parties regarding PHI; in case of conflict concerning PHI matters, this BAA governs. (c) This BAA is governed by federal HIPAA regulations and, to the extent not preempted, the laws of the Commonwealth of Virginia. (d) Either party may seek injunctive or equitable relief for breach. (e) Provisions that by their nature should survive termination shall do so. (f) Severability applies. (g) No third-party beneficiaries. (h) Notices in writing as set forth in the Agreement. (i) Any ambiguity shall be interpreted to permit HIPAA compliance. (j) This BAA may be executed in counterparts via electronic signature.

16. Audit and Compliance Verification

Covered Entity may request reasonable documentation demonstrating Business Associate's compliance with HIPAA safeguards and security standards. Such requests shall be limited to once per twelve (12) month period, made with at least thirty (30) days advance written notice, and satisfied through written documentation rather than on-site audit. Each party shall bear its own costs in connection with such verification. This provision shall not limit Covered Entity's rights in the event of a known or suspected Breach.

*** END OF BUSINESS ASSOCIATE AGREEMENT ***